

SUMMATIVE ASSESSMENT

FULL NAME & SURNAME	
ID NUMBER:	
NAME OF ASSESSOR	
DATE OF ASSESSMENT	
VENUE	

MODEL ANSWERS

	ACHIEVED	NOT ACHIEVED
KNOWLEDGE		
SKILLS		

Signature of learner

Signature of Assessor

ASSESSMENT PACK

Please complete the following sections (A and B) before commencing with this assessment. The moderator of this assessment will complete section C.

Section A Learner Information															
Name:															
Surname:															
Date:															
Contact telephone no:															
Learnership agreement no:															
Company:										Site:					
ID															

Section B Assessor Information															
Name:															
Surname:															
Date:															
Contact telephone no:															
Assessor no:															
Provider no:										Site:					
ID															

Section C Moderator Information															
Name:															
Surname:															
Date:															
Contact telephone no:															
Moderator no:															
Company:										Site:					
ID															

Results:

P A R T

1: Assessors Guide

1. Instructions to Assessor

Introduction:

This assessment guide has been designed as a generic assessment guide and is intended for use by the accredited Security Industry Training Providers.

Purpose of the assessment

The purpose of summative assessment against this unit standard is to:

- ♦ Award credits to the NQF to learners who are able to Handle and defuse security related conflict

Learning assumptions

The following knowledge, skills, attitude and/or equivalent:

- ♦ A knowledge, comprehension and application of language at NQF 02.

Assessment methods

The following assessment methods will be used for the summative assessments:

- ♦ Written and/or/verbal questioning
- ♦ Product sample and on site assessment

2. Assessment Process

General

- ♦ Use the assessment guide and your latest company policies and standard operating procedures to assess the evidence received from the learner.
- ♦ Use the section: Addition Comments/Questions to note down any further comments or questions on the evidence assessed.
- ♦ Use the model answers as a guideline to assess the learner's answers to the assessment questionnaire.
- ♦ The learner can complete the assessment questionnaire orally. In this case, agree a date, time and venue.
- ♦ Provide the learner with a feedback within 10 working days of receiving the evidence.

Step 1 - Planning for the Assessment

Review this assessment guide to:

- ♦ Ensure that you understand all the requirements of the assessment in terms of evidence required to prove competence.
- ♦ Identify and prepare the learner for the assessment by:
 - ⇒ Completing the Assessment Plan with the learner to discuss and agree the details regarding the assessment.
 - ⇒ Completing the Assessment Preparation Checklist and getting the learner to sign.
- ♦ Ensure that you have familiarized yourself with the following:
 - ⇒ Identification of conflict
 - ⇒ Management and handling of conflict
 - ⇒ Workplace procedures
 - ⇒ Report writing

Step 2: Complete the Assessment

- ♦ Collect the evidence in accordance with the methods and evidence requirements specified.
- ♦ Mark each question as correct or incorrect in the “Office Use” column.
- ♦ Record the evidence on the assessment guide and indicate “Competent”, “Not Yet Competent” or “Not Assessed” for each assessment criterion. Note down any comments at the back of the assessment guide.
- ♦ Ask the learner additional questions, if necessary, to clarify points. Record these on the guide.
- ♦ All questions must be complete as per the criteria specified.
- ♦ Answers provided must be similar to the model answers.

Step 3 - After the Assessment

- ♦ Prepare the feedback by writing comprehensive, developmental feedback after each section on the Assignment Sheets. In addition to this, you are required to write a summary overall feedback on the Assessment Guide.
- ♦ Provide the feedback to the learner in a safe, undisturbed in nature.
- ♦ Ensure that your feedback is developmental and supportive in nature.
- ♦ Advise the learner on what action to follow in the event of a “Not Yet Competent” rating.
- ♦ Advise the learner on what action to take where he/she feels the need to appeal against your decision.
- ♦ Allow the learner time to provide you with feedback relevant to the process.
- ♦ Record the learner’s feedback in the guide and ensure that it is given to the person responsible for the quality assurance of assessment tools.
- ♦ Ensure that the learner co-signs the assessment guide to indicate agreement with the feedback.

3. Assessment documentation required:

Step 1: Planning for the Assessment

- ♦ Assessment Plan
- ♦ Assessment Preparation Checklist
- ♦ Assessment Policy (including Appeals)
- ♦ Evidence Matrix
- ♦ Assessment Instruments

Step 2: Conducting the Assessment

- ♦ Assessor Guide
- ♦ Learner's workbook
- ♦ Summative assessment pack

Step 3: After the Assessment

- ♦ Assessment Comments
- ♦ Feedback Report

Specific Instructions

Please note that Part 3 Assessment Instruments are not included in this guide and are to be included by the assessor on an individual basis.

The actual summative assessments need to be completed and signed off by both learner and assessor. The assessor will take control of the completed assessment instruments and will file them under the tab for Assessment Evidence.

The completed assessment pack will be kept in safekeeping at the training provider for three months after endorsement by SASSETA and will then be returned to the learner.

Guidelines where an appeal is lodged

The normal appeal procedure prescribed by SASSETA and described by the provider's Quality Management System will be followed.

P A R T

2: Assessment Planning

ASSESSMENT PLAN

ASSESSMENT DETAILS					
Date of Assessment		Option 1	Option 2	Option 3	Option 4
TIME OF ASSESSMENT					
Start:			End:		
VENUE			Contact person		
LANGUAGE MEDIUM					
METHOD OF ASSESSMENT (please tick off the one to be used)					
OBSERVATION		ORAL		WRITTEN	
Simula- tion		Knowledge test		Knowledge test	
Product		Interview			

PRE-ASSESSMENT MEETING CHECKLIST

ACTION	YES/NO	COMMENTS
Set learner at ease; be friendly, polite and professional.		
Explain to the learner and agree on the following issues. 1. The unit standard that will be assessed 2. Date, time, venue and process to be followed during the assessment. 3. Summative assessment tools to be used for the assessment. 4. The assessment plan 5. Purpose of assessment		
Explain to the learner and agree on the role of all involved during the assessment process.		
Identify possible barriers and or disabilities of the learner.		
Explain the meaning and application of RPL.		
Explain, discuss and provide one complete set of the Appeals process documentation.		
Explain to the learner when final results will be available and how feedback will be provided.		
Discuss previous assessment results if applicable.		

I, _____ (initials and surname of learner), DECLARE THE FOLLOWING:

A copy of the unit standard(s) involved has been given to me prior to this meeting. I know I will be assessed against the criteria, which have been set to the applicable unit standards. The criteria have been discussed with me, and the procedures and purpose of the assessment has been clearly explained to me.

I am well aware of the venue, date and time that I will be assessed. I consider the period of time given to me to prepare myself for the assessment to be fair.

I understand clearly that I have the right to appeal against any decision made by the assessor during the assessment of the evidence provided by me, and that I have free access to the appeals procedures attached to this assessment pack. I understand that I have the right to be accompanied by another person during all procedures, and that I have free access to the Training Division of SBV'S Health and Safety Procedures- filed at the offices.

Signature of learner

Date

P A R T

3: Assessment Evidence

Assessment Instruments



TAKE NOTE

The assessment instruments included in this assessment pack are all summative assessment instruments and are to be read in conjunction with the formative assessment instruments contained in the learner workbook. Both formative (workbook) and summative assessments are to be retained as part of the learner's portfolio of evidence.

A number of the assessment instruments contained in this assessment are workplace knowledge based questions.

This means that you will arrange with the learner, a time that is suitable, during which the learner will complete each questions.

QUESTION 1: What is the purpose of the Bill of Rights?

The purpose of the Bill of Rights is to protect the individual against abuses of the authority of the State (including the police) and, in some instances, imposes a duty on the State to provide citizens with certain social and economic rights. It acts as a set of checks and balances which protect citizens from the abuse of government power as well as imposing certain duties on government.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 2: Which Law in South Africa enjoys supremacy over all other legislation?**Section 2 of the Constitution: Supremacy of the Constitution**

This Constitution is the supreme law of the Republic; law or conduct inconsistent with it is invalid, and obligations imposed by it must be fulfilled.

The Constitution places an obligation on every security official to respect and protect the fundamental human rights of every person in South Africa.

The basic human rights principle in the Constitution is based on international law. This international law can be found in international conventions and treaties (these are documents that look like contracts and that are signed by the different countries, including the South African Government). It is therefore; also important for security officials to know the basic international human rights standards for law enforcement.

The question that most officials ask is -

- ♦ do police and security officials have any rights in terms of the Constitution?
- ♦ Do "criminals", as a result of the Constitution, have more rights now?

Requirements achieved	YES		NO	
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Comments in support of decision

QUESTION 3: Multiple choice questions. Choose one or more of the following by marking the correct option with a **X**

1. In terms of the Constitution, everyone has the following rights:

- [A] The right to acquire dignity and respect
- [B] The right to freedom and security of the person
- [C] The right to privacy**
- [D] The right to remain silent
- [E] The right to equal protection and indemnity when using a firearm

2. Which of the following have more rights in terms of the Constitution?

- [A] Police and Security Officials
- [B] Convicted criminals
- [C] Permanent residents of South Africa
- [D] Immigrants in South Africa
- [E] All of the above**

3. How do the Police limit the rights of people in terms of the Criminal Procedure Act?

- [A] Arrest
- [B] Detention
- [C] Search and seizure
- [D] Murder
- [E] All of the above**

4. There may not unfairly be discriminated directly or indirectly against anyone on one or more grounds, including:

- [A] Race and Gender
- [B] Marital status or sexual orientation
- [C] Ethnic or social origin
- [D] Beliefs or Culture
- [E] All of the above**

5. Everyone has the right to freedom and security of the person, which includes the right-

- [A] Not to be deprived of freedom
- [B] Not to be detained without trial**
- [C] Not to be tortured without good reason
- [D] Not to be detained before seeking legal aid
- [E] All of the above

6. Which of the following relates to the Right to Freedom of Movement and residence:

- [A] Every person in South Africa as a right to freedom of movement
- [B] Everyone has the right to leave the Republic of South Africa
- [C] Every citizen has the right to reside anywhere in South Africa
- [D] Every citizen has the right to a passport
- [E] **All of the above**

7. Which of the following relates to the Right to Housing:

- [A] **Everyone has the right to have access to adequate housing**
- [B] The state must take reasonable measures to achieve the progressive realization of this right
- [C] No one may have their home demolished without an Order of Court
- [D] A person may only be evicted from their home when in arrears with payments
- [E] Only High Court Legislation may permit arbitrary evictions

8. Which of the following relates to the Rights of Children:

- [A] Every child has the right to earn an income from the age of 13
- [B] **Every child has the right to basic nutrition, shelter, health care services etc.**
- [C] Every child has the right to be abused or neglected
- [D] Every child has the right to family or parental care
- [E] All of the above

9. Arrested, detained and accused persons have the right to:

- [A] **Remain silent and to be informed of the consequences if not remaining silent**
- [B] **Not to be compelled to make any confessions or admissions that could be used in evidence against him**
- [C] To be brought before a Court of Law within 72 hours
- [D] To be released from detention immediately after the first court appearance
- [E] **To be released from detention if the interests of justice permit subject to reasonable conditions**

10. Everyone who is detained has the right :

- [A] to be detained at his choice of location
- [B] **to have a legal practitioner assigned to the detainee by the State at the State's expense**
- [C] to communicate with and be visited by that person's doctor or religious counselor
- [D] **to challenge the lawfulness of the detention in person before a court**
- [E] **to be informed of the reasons for being detained**

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 4: The purpose of this Code is to provide binding rules that all security service providers and employers of in-house security officers must obey in order to:

- (a) promote, achieve and maintain a trustworthy and professional private security industry which acts in terms of the law applicable to the members of the industry;
- (b) promote, achieve and maintain compliance by security service providers with a set of minimum standards of conduct which is necessary to realize the objects of the Authority;
- (c) promote, achieve and maintain compliance by security service providers with their obligations towards the State, the Authority, consumers of security services, the public, and the private security industry in general;
- (d) ensure the payment of the applicable minimum wages and compliance with standards aimed at preventing exploitation or abuse of employees in the private security industry, including employees used to protect or safeguard merely the employer's own property or other interests, or persons or property on the premises of, or under the control of the employer; and provide for matters incidental to the above

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 5: Name 5 (five) general obligations that the security service provider has towards PSIRA

1. A security service provider must, within his or her ability, render all reasonable assistance and co-operation to the members and employees of the Security Services to enable them to perform any function which they may lawfully perform.
2. A security service provider may not interfere with, resist, obstruct, hinder or delay a member or an employee of a Security Service or an organ of State in the performance of a function which such person may lawfully perform.
3. A security service provider must, without undue delay, furnish all the information and documentation to a member or employee of a Security Service or an organ of State which such member or employee may lawfully require.
4. A security service provider may not unjustly cast reflection upon the honesty, professional reputation, skill, knowledge, service or qualifications of any member of the Security Services.
5. A security service provider must be honest in all his or her dealings with a Security Service and with any organ of State.
6. A security service provider may not, whether directly or indirectly, request or use a member or former member of a Security Service or any employee or former employee of a Security Service or an organ of State, to obtain any information, document, object or assistance for the purposes of rendering a security service, where such member, former member, employee or former employee, will contravene a law or the conditions of his or her service, as the case may be, in providing such information, document, object or assistance.
7. A security service provider must, where the importance, nature or circumstances of a security service, or the nature or extent of the risks guarded against, or any other relevant fact, reasonably requires such a step, officially provide a responsible member of the Service with all relevant information regarding the rendering or proposed rendering of the security service, and maintain contact with such a member if this is reasonable and prudent

Requirements achieved	YES		NO	
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Comments in support of decision

10. (a) A security business must keep full and proper financial records, available for inspection by the Authority, for a period of at least 3 years from the date of any transaction, of all income and expenditure of the security business on account of the rendering of any security service by it.
- (b) The provisions of regulation 10(2), (3), (4), (5) and (6) of the Private Security Industry Regulations, 2002 are, with the necessary changes, applicable to the obligation contemplated in paragraph (a).

Requirements achieved	YES		NO	
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Comments in support of decision

QUESTION 6: GENERAL OBLIGATIONS TOWARDS CLIENTS AND ISSUES RELATED THERETO.

A security service provider must, whenever a client reasonably needs information to make an informed decision, furnish sufficient and correct information which is within the knowledge of the security service provider, to the client, including information concerning:

- (2) A security service provider must, whenever a client reasonably needs information to make an informed decision or to exercise or protect a right or comply with a duty, furnish sufficient and correct information which is or should reasonably be within the knowledge of the security service provider, to the client, including such information concerning the following:
- (a) the risks to which the client is exposed and the client's needs in respect of a particular security service;
 - (b) the client's needs in respect of the use of equipment, firearms and weapons in the rendering of a security service to the client;
 - (c) the security service that he, she or any other security service provider that will be used to render the security service, is entitled, able and qualified to render;
 - (d) the correct and full remuneration, reward, fee or benefit payable by the client in respect of the relevant security service;
 - (e) the registration status as security service provider, training level and relevant conditions of service of the security officers used or to be used in rendering the security service;
 - (f) the management, control and supervision of the rendering of the security service as well as reasonable contact particulars of security officers performing such functions;
 - (g) the procedures, firearms, ammunition, weapons and equipment used or to be used by security officers in the rendering of the security service;
 - (h) any contractor or sub-contractor used or to be used in connection with the rendering of the security service, as well as the control and supervision of such contractor or sub-contractor;
 - (i) any matter on which the security service provider is by law obliged to furnish information to the client; and
 - (j) any matter on which the client lawfully and reasonably requests information.

QUESTION 7: PROVISIONS REGARDING CERTAIN CATEGORIES AND CLASSES OF SECURITY SERVICE PROVIDERS AND DIFFERENT TYPES OF SECURITY SERVICES

Name 2 (two) reasonable steps a security service provider must take before a security officer in his employ is made available to render a security service to any person

- ♦ has been properly informed about the nature and scope of his or her functions and duties as well as his or her legal powers in this regard;
- ♦ is properly managed, controlled and supervised;

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 8: PROVISIONS REGARDING IMPROPER CONDUCT, THE ENFORCEMENT OF THE CODE AND OTHER MATTERS RELATING THERETO:

A security service provider who has been found guilty of improper conduct is subject to certain penalties. Briefly name 3 (three) of these penalties:

- ♦ a warning or a reprimand;
- ♦ suspension of registration as security service provider for a period not exceeding 6 months;
- ♦ withdrawal of registration as security service provider;
- ♦ a fine not exceeding R10 000, which is payable to the Authority;
- ♦ publication of appropriate details of the conviction of improper conduct and any penalty imposed; or
- ♦ any combination of the above.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 9: APPEAL AGAINST DECISIONS

Any person aggrieved by the refusal of PSIRA to grant his application for registration as a security service provider may appeal to an Appeal Committee.

An Appeal Committee is appointed by _____ and consists of:

[A] _____

[B] _____

[C] _____

Requirements achieved	YES		NO	
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Comments in support of decision

QUESTION 10: Multiple choice questions. Choose one or more of the following by marking the correct option with a **X**

1. **In determining whether a person is criminally liable, the first question to be asked is:**
 - [A] Whether the person has previously been arrested for a criminal offence
 - [B] Whether the type of conduct allegedly committed by him is recognized by the law as a crime**
 - [C] Whether the type of conduct allegedly committed by him is of civil nature
 - [D] Whether the type of conduct allegedly committed by him is a contravention of a legal rule
 - [E] All of the above
2. **What is The Principle of Legality also known as?**
 - [A] Ignorantia facti excusat
 - [B] In statu quo
 - [C] Modus operandi
 - [D] Ita lex scripta est
 - [E] Nullum crimen sine lege**
3. **The term 'act' as used in criminal law refers to:**
 - [A] Criminal thoughts and decisions
 - [B] A voluntary human act or omission**
 - [C] Type of conduct by a human being
 - [D] Presentation of a situation
 - [E] All of the above
4. **When is an 'act' punishable in criminal law?**
 - [A] When the act cannot be controlled by will or intellect
 - [B] When the act can be controlled by will or intellect
 - [C] When the act is voluntary**
 - [D] When the act is not voluntary
5. **Which of the following acts are unlawful?**
 - [A] Attacking another human being to help someone
 - [B] To assault someone who is looking for trouble
 - [C] The intentional killing of another human being**
 - [D] The killing of another human being in self-defense
 - [E] Driving over the speed limit in case of emergency

6. A person acts in private defense if:

- [A] He uses force to repel an unlawful attack which already commenced**
- [B] He feels threatened in a certain situation and needs to protect his own interest
- [C] He attacks a policeman in order to avoid being arrested
- [D] He escapes from custody in order to regain his freedom
- [E] He dislikes a certain person and therefore assaults him

7. What are the requirements of an attack in order to make private defense lawful?

- [A] The attack must be unlawful**
- [B] The attack must be against interests which ought to be protected**
- [C] The attack must be threatening but not yet completed**
- [D] The attack must be directed at the defender
- [E] All of the above

8. What are the requirements of an act of defense to make same lawful?

- [A] When a person thinks he is in danger if another person is under the influence of
- [B] alcohol or drugs
- [C] The act of defense must be directed towards the attackers friend in order to scare him off
- [D] The act of defense must be as harmful as possible in order to kill the attacker
- [E] The attacked person must be aware of the fact he is acting in private defense
- [F] The act of defense must be directed towards the attacker and must be necessary**

9. A person acts out of necessity, and his conduct is therefore lawful if:

- [A] he acts in the protection of his own or somebody else's life**
- [B] he suspects that a person might attack somebody else
- [C] he heard stories of the person and sees it necessary to teach him a lesson
- [D] he acts in a way to prevent danger
- [E] He acts in a way to disarm his attacker and in the process broke the attacker's arm

10. When executing an arrest, when may force be used in order to effect same?

- [A] When the person to be arrested is under the influence of alcohol and on the verge of passing out
- [B] When the person to be arrested is kicking at the policeman
- [C] When the person to be arrested is injured and cannot walk with the policeman
- [D] When the person to be arrested is resisting arrest**
- [E] All of the above

11. Which of the following relates to the term 'necessity':

- [A] When the act stems from human conduct
[B] When the act stems from chance circumstances
 [C] When an attack is directed against an unlawful attack
 [D] When the attack is directed against the interest of an innocent third party
 [E] When the attack takes place in the spirit of the moment in order to protect your
 [F] property

Requirements achieved	YES	NO
Comments in support of decision		

QUESTION 11: Explain in your own words the meaning of "Corruption"

At the outset it is advisable to differentiate between the active and the passive forms of the offence. (this terminology is not used in the Act; it is ours). The active form refers to the **giving or offering** of a benefit to somebody such as an official or a representative. The passive form refers to the **receiving** by the latter person of the benefit or offer. Both types of conduct constitute corruption.

Requirements achieved	YES		NO	
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Comments in support of decision

QUESTION 12: A Person causes the death of another person unlawfully because of negligence. Is this seen as:

- [A] Murder
[B] Culpable Homicide

Culpable homicide consists in The unlawful, negligent causing of the death of another human being.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 13: A person commits assault if:

- [A] He unlawfully and _____ applies force, _____ or _____, to the person of another or;
- [B] Inspires a belief in another person that _____ is immediately to be applied to him.

A person commits assault if he unlawfully and **intentionally**

- ♦ applies force, **directly or indirectly**, to the person of another, or
- ♦ inspires a belief in another person that **force** is immediately to be applied to him.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 14: What are the 4 (four) basic requirements that must be complied with before a person can be convicted of theft?

- [A] an act of _____
- [B] in respect of _____
- [C] which takes place _____ and
- [D] _____

- ♦ an act of **appropriation**
- ♦ in respect of **a certain type of property** (or thing)
- ♦ which takes place **unlawfully** and
- ♦ **intentionally** (more particularly, with the intention to appropriate)

Requirements achieved	YES		NO	
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Comments in support of decision

QUESTION 15: Multiple choice questions. Choose one or more of the following by marking the correct option with a **X**

1. Indicate the different forms of theft:

- [A] Unlawful removal of property**
- [B] Extortion
- [C] Perjury
- [D] Embezzlement**
- [E] Corruption

2. For property to be capable of being stolen it must be:

- [A] Movable property**
- [B] Immovable property
- [C] Property that does not belong to you or anyone else
- [D] Your own property which is in the lawful possession of someone else
- [E] Personal property repossessed by yourself

3. When an theft occurs by means of violence it is called

- [A] Assault
- [B] Robbery**
- [C] Culpable homicide
- [D] Extortion
- [E] Bribery

4. When you knowingly receive stolen property, you are making yourself guilty of an offence and can be found guilty of being:

- [A] An accomplice**
- [B] An accessory after the fact
- [C] A perpetrator
- [D] A fraudster
- [E] An extortionist

5. Malicious injury to immovable property:

- [A] Theft
- [B] Arson**
- [C] Housebreaking
- [D] Robbery
- [E] Sedition

6. What is considered as “housebreaking”?

- [A] The removal of burglar bars to gain entry to the property
- [B] Entering through a door left open by the occupants
- [C] Illegal trespassing on your property
- [D] Entering the property upon invitation of the occupants**
- [E] Occupants gaining access to the house through a window after being locked out

Requirements achieved	YES	NO
Comments in support of decision		

QUESTION 16: The Constitution guarantees my right to _____, freedom of _____, speech and _____ etc. as long as my _____ do not infringe on the _____ of another individual or _____. If someone _____ on my rights, I can demand the police to _____. If there is not sufficient time to notify the police, I can, within the _____ of the Law, act to _____ myself against the _____ who _____ my life or my _____.

The Constitution guarantees my right to life, freedom of movement, speech, association etc. as long as my rights do not infringe on the rights of another individual or the State. If someone infringed on my rights, I can demand the police to intervene. If there is not sufficient time to notify the police, I can sometimes, within the limits of the law, act to defend myself against the perpetrator who endangers my life or my property.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 17: Multiple choice questions. Choose one or more of the following by marking the correct option with a 

1. **When can a lawful arrest be executed in accordance with the Criminal Procedures Act?**
 - [A] **If a person trespasses on another persons property other than his own**
 - [B] If a person trespasses on his own property
 - [C] If a person trespasses on the property that he has been appointed to safeguard by the owner of the property
 - [D] If a person trespasses on another persons property other than his own and maliciously damages the property
 - [E] All of the above
2. **A private person has the right to arrest someone who he suspects committed a First Schedule offense. Which of the following is regarded as First Schedule Offenses:**
 - [A] Assault
 - [B] Crimen injuria
 - [C] Rape
 - [D] Murder
 - [E] **All of the above**
3. **Arrest infringes certain rights of the accused which are protected in the Bill of Rights in the Constitution. These rights are:**
 - [A] A right not to be discriminated against
 - [B] A right not to be deprived of freedom
 - [C] A right to privacy
 - [D] A right to human dignity
 - [E] **All of the above**
4. **Section 47 of the Criminal Procedure Act, concerning the arrest of another person, states that any person, when called upon to do so by a police official, must assist them in the arrest. This is applicable to:**
 - [A] **Any person (especially citizens in this country) who is 16 years of age and older**
 - [B] Only males of 18 years and older
 - [C] Both males and females of adult age
 - [D] Males of 16 and older
 - [E] All of the above

5. The law regarding the arrest of a person relates to the following:

- [A] The purpose of an arrest is to bring persons suspected of having committed offences before a court for trial**
- [B] Where an arrest is called for, no force may be used by a private citizen in order to carry out the arrest
- [C] A suspect may be shot should he flee the scene of an accident
- [D] A Where force is necessary, only the least degree of force may be used in order to carry out the arrest**
- [E] All of the above

6. When may force be used during an attempted arrest?

- [A] When the suspect attempts to flee**
- [B] When the suspect is under the age of 16
- [C] When the suspect is resisting the arrest
- [D] When the suspect is stronger and bigger than the arrestor
- [E] Force may never be used

7. When a citizen refuses to assist a police official with an arrest, he can be imprisoned or be given a fine. What reasons will be accepted by a court in excusing a person from assisting the police official requesting assistance?

- [A] When the person fears for his own safety
- [B] When the person is not a citizen of this country
- [C] When the person is physically disabled in some way
- [D] When the person did not understand the language of the police official**
- [E] All of the above

Requirements achieved	YES	NO
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Comments in support of decision

QUESTION 18: Role play:

- ♦ When candidates indicate their readiness to start, the simulation will be put into motion and observation will start immediately.
- ♦ Evidence can be obtained from the Observation Checklist, as all required criteria will appear on the checklist. Affidavits from the role players can also be obtained if necessary.
- ♦ Assessment will be required to complete a report and an Occurrence Book. Copies of each will be provided.
- ♦ Evidence presented by the candidate should be recorded and evaluated on the evidence guides below. Where evidence is not satisfactory, assessors should describe the way in which evidence presented differed from what was required.

The assessor needs to.....

- ♦ Select 4 role players to simulate a crime scene. Each candidate must have a specific role to play. One of being a crook, one of being an innocent bystander, one of being a police officer and one of being a victim.
- ♦ The instruction to the role players must be amended after each assessment. The candidates are expected to follow instructions as set out BELOW.
- ♦ The candidate will need to identify a suspect from a number of role players by applying the necessary knowledge required to analyze a wrongful act simulated by the role players.
- ♦ The candidate must then apprehend arrest and detain the identified suspect.
- ♦ The assessor needs to be a subject expert as the role play needs to be changed consistently for making sure the assessment complies with all assessment principles.

OBSERVATION CHECKLIST FOR: EFFECT A LAWFUL CITIZEN ARREST					
Activity 1:		Arrest a suspect			
No:		Y	N	O	Comments
1.	Did arresting and apprehending comply with Workplace procedure				
2.	Identify requirements of the crime: Comparing it with the following: ♦ Legality ♦ Act ♦ Unlawfulness ♦ Fault				
3.	Call for back-up				
4.	Make sure that arresting officer comply with the following: ♦ Is suspect alone, if not call back-up (back can be called any way) ♦ Is suspect armed and with what ♦ Identify innocent bystanders				
5.	Identify yourself as the arresting officer. i.e.: Good morning sir/Mam I am W.C. Fat I am arresting you for.....				
6.	Inform suspect of arrest and explain the reason and to submit himself/herself voluntary.				
7.	Explain that he can contact an attorney and is not necessary to make a statement., Make sure suspect is safe, have food and water				
8.	After arrest search candidate for possible evidence that can support arrest.				
9.	After arrest search candidate for possible goods that might hurt either the suspect or arresting officer.				
10.	Help the police officer to finalize the arrest.				
11.	If suspect refuse to submit himself to custody, the arrester must touch his body to complete the arrest.				
12.	Did detention comply with Workplace procedure				

13.	Contact SAPS immediately and supply following details: ♦ Name of suspect ♦ Details of arrest i.e.: reason, time, where				
14.	Contact the following role players: ♦ Supervisor ♦ Suspects wish (family employee)				
15.	Record detail of arrest into Occurrence book				

QUESTION 19: Multiple choice questions. Choose one or more of the following by marking the correct option with a **X**

1. What is the purpose of the Liquor Act?

- [A] To establish norms & standards to maintain economic unity in the liquor industry**
- [B] To ensure that the government benefits from the sale of liquor in
- [C] To assist the government, minors and adults have easy access to liquor
- [D] To provide for measures to promote cooperative government in the area of liquor regulations
- [E] All of the above

2. In terms of Section 10 of this Act:

- [A] A person may not sell or supply liquor to a minor**
- [B] A minor may only consume alcohol in the presence of the parents
- [C] A minor may be forced to produce an identity document when purchasing alcohol
- [D] A minor has the right to freedom and may not be prohibited to purchase alcohol
- [E] A minor may not make a false claim about age in order to induce a person to sell

3. A liquor inspector may:

- [A] Investigate complaints submitted to the inspector in the prescribed manner**
- [B] Monitor and enforce compliance of the Liquor Act**
- [C] Supply liquor in small quantities to minors
- [D] Question any person at the premises where an inspection is conducted
- [E] All of the above

4. Where may alcohol be sold, served or consumed?

- [A] In licensed areas of hotels**
- [B] In the privacy of your own house
- [C] Outside beer gardens
- [D] In any fast food restaurant

Requirements achieved	YES	NO
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Comments in support of decision

QUESTION 20: What is the purpose of the Explosives Act?

To consolidate the laws relating to the manufacture, storage, sale, transport, importation, exportation and the use of explosives.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 21: What are the important legislative requirements that security officers should take note of in terms of the Dangerous weapons Act.

- ♦ Prohibition of manufacture of unauthorized explosives except in small quantities for chemical experiment.
- ♦ Prohibition of storage or possession of unauthorized explosives save in
- ♦ accordance with section three.
- ♦ Prohibition of storage of authorized explosives except in licensed premises.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 22: Explain in your own words what the purpose of the Dangerous weapons Act entails

To provide for certain prohibitions and restrictions in respect of the possession, manufacture, sale or supply of certain objects; to provide for the imposition of prescribed sentences where dangerous weapons or firearms have been used in the commission of offences involving violence; to repeal sections 10 and 10*bis* of the General Law Amendment Act, 1949; and to provide for incidental matters.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 23: In your own words, give a definition for “dangerous weapon”:

Dangerous weapon' means any object, other than a firearm, which is likely to cause serious bodily injury if it were used to commit an assault

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 24: If a person is caught with an object in his possession that is the replica of a firearm, can he be found guilty of an offence? Motivate your answer.

Any person who is in possession of any object, firearm or replica of a firearm in contravention of the provisions of any notice issued shall be guilty of an offence and liable on conviction to the penalties prescribed in subsection (1).

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 25: SECTION 86 - No person may transport any firearm or ammunition for reward without being in possession of a firearm transporter's permit. Who issues this permit and when may this permit be issued?

Firearm transporter's permit

SECTION 86. (1) No person may transport any firearm or ammunition for reward without being in possession of a firearm transporter's permit issued in terms of this Act.

- (2) A firearm transporter's permit may be issued to a person who is a fit and proper person to conduct business as a firearm transporter.
- (3) The Registrar may issue a firearm transporter's permit-
 - (a) on receipt of an application completed on the prescribed form and containing the prescribed information; and
 - (b) for such period as the Registrar may determine.

Requirements achieved	YES		NO	
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Comments in support of decision

QUESTION 26: When is the Registrar entitled to cancel a firearm transport's permit?

SECTION 88. (1) The Registrar may, by written notice, cancel a firearm transporter's permit if the permit holder:

- (a) no longer qualifies to hold the permit; or
 - (b) has contravened or failed to comply with any provision of this Act or any condition specified in the permit.
- (2) The former holder of a permit must dispose of his or her cargo of firearms and ammunition in accordance with the directions of the Registrar.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 27: Multiple choice questions. Choose one or more of the following:

INTERPRETATION OF THE DEFINITION

1. A person can only legally enter a building when the following has taken place:

- [A] He must have permission to enter the building
- [B] He must be a family member of the owner of the building
- [C] He must be in the building during working hours
- [D] He must be a friend of the security officer
- [E] All of the above

Requirements achieved	YES	NO
Comments in support of decision		

QUESTION 28: In your own words, give a definition for “public premises”

'public premises' means any building, structure, hall, room, office, convenience, land, enclosure or water surface which is the property of, or is occupied or used by, or is under the control of, the State or a statutory body, and to which a member of the public has a right of access, or is usually admitted or to which he may be admitted

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 29: In your own words, give a definition for “public vehicle”

'**public vehicle**' means any vehicle, conveyance, ship, boat, craft or aircraft which is the property or under the control of the State or a statutory body, and which is used for the transport, for profit or otherwise, of members of the public

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 30: In your own words, give a definition for “trespassing”

Trespassing: Section 1(1) of the Trespass Act 6 of 1959 provides that any person who without the permission:

(a) of the lawful occupier of any land or building or part of a building ; or

(b) of the owner or person in charge of any land or any building or part of a building that is not lawfully occupied by any person,

enters or is upon such land or enters or is in such building or part of a building, shall be guilty of an offence unless he has lawful reason to enter or be upon such land or enter or be in such building or part of a building.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 31: Multiple choice questions. Choose one or more of the following my marking the correct option with a 

1. The State may, in accordance with the provisions of this Act, seize the following:

- [A] Articles which was assumed to be used in a criminal offence
- [B] Any article which may be used as evidence in a court case
- [C] Any article which was used in the commission of an offence
- [D] Any article belonging to the State
- [E] All of the above

2. Who is allowed inside the premises whilst the police are searching same?

- [A] Nobody is allowed except the police or security official
- [B] The owner of the premises
- [C] The person in charge of the premises, even if he isn't the owner of same
- [D] Friends of the owner of the premises
- [E] All of the above

3. Premises may be searched when it is suspected that the following might be on the premises:

- [A] Intoxicating liquor
- [B] Dependence-producing drugs
- [C] Arms and ammunition
- [D] Explosives
- [E] All of the above

4. Who is allowed to conduct strip searches on female persons?

- [A] A female person may not be strip searched
- [B] Any security personnel
- [C] Any police official
- [D] Another female police official
- [E] All of the above

5. After a person has been arrested, who may search such person?

- [A] The Security official
- [B] The Police

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 32: What is the PURPOSE OF THE ACT?

To regulate the holding of public gatherings and demonstrations at certain places; and to provide for matters connected therewith.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 33: When an organization seeks to hold a protest “march” or gathering, a notification form must be filling terms of Section 321 of the ct, providing the following information:

- ♦ the name and address of the convenor(s), telephone numbers and address;
- ♦ the name of the organization requesting the gathering- if the gathering is not called by an organization- the convenor must make a statement that it is called by himself;
- ♦ the purpose of the gathering;
- ♦ the date, time and duration of the gathering;
- ♦ the place where the gathering will commence;
- ♦ the number of participants expected to attend the gathering;
- ♦ the proposed number of the marshals;
- ♦ if the gathering is going to take the form of a procession- where it will commence- and the routes to be taken;
- ♦ where a memorandum is going to be handed over- the organization or individual accepting the memorandum and the place where such a memorandum or petition will be accepted;
- ♦ a letter confirming that the organization or individual will accept a memorandum and the mode of transport to be used to deliver the participants in the gathering.
- ♦ After the submission of a notice- and after consultation with a member of SAPS the responsible officer may decide to call or not to call a consultation or meeting in terms of section 4 of the RGA.24 Section 4 of the RGA provides for the holding of a meeting after the submission of section 3 notice to discuss the contents of the notice and whether amendments should be effected to the proposed facts so as to meet the objectives of the RGA. In this meeting- parties must agree on

QUESTION 34: Explain what is meant by the term “vicarious liability”

Vicarious liability is a creation of statute, because in common law a person will only be held liable for his or her own conduct. The general rule is that a person is not liable for the crime of another unless he/she authorizes or procured its commission or took part in it.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 35: When will members of a partnership be held liable for the actions of the other?

- ♦ The nature of the relationship between the two parties is very important. Where the person who committed the act does not have a relationship as specified in the legislation (e.g. that of an employee or agent to the client), his/her conduct will not be attributed to that of the employer/client.
- ♦ In addition to the **relationship between the parties** it must be clear that the perpetrator was **acting within the scope of his/her employment or mandate**. It must be shown that the person was acting in the course of his/her employment or within the scope of the authority conferred on him/her.
- ♦ The unlawful conduct must have been committed in **circumstances that make it legitimate to attribute the act of the employee to the employer**. The fact that the employer or client may have instructed the employee not to engage in such activities that resulted in the unlawful conduct is not relevant.
- ♦ Another approach is to ask **whether the employer/client derived any benefit** from the activities of the employee or the agent. If the answer to this question is YES, then the employer/client would be held liable for the conduct of his/her/its employee.

Requirements achieved	YES		NO	
Comments in support of decision				

QUESTION 36: State the relationship between parties that will cause one person to be held liable for the actions of another

- ♦ The nature of the relationship between the two parties is very important. Where the person who committed the act does not have a relationship as specified in the legislation (e.g. that of an employee or agent to the client), his/her conduct will not be attributed to that of the employer/client.

Requirements achieved	YES		NO	
Comments in support of decision				
